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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,**  
**PLAINTIFF,**

**v.**

Subhi Abdelhalim;  
CSAA Insurance Exchange;  
PHILLIPS, SPALLAS & ANGSTADT LLP;  
PRIYA D. NAVARATNASINGHAM;  
ALBERTO REYNA;  
MICHAEL R. CHAMBERS;  
CARBONE, SMITH & KOYAMA;  
and DOES 1 through 50, inclusive;

**DEFENDANTS**

**Case No.: CGC-25-631801**

**DOCUMENT 17: CURE MATRIX AND  
PENDENCY NOTICE**

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**DOCUMENT 17: SAC CURE MATRIX AND PENDENCY NOTICE**

**1. PENDENCY AND CALENDARING NOTICE**

Concurrently calendared for the same April 29th, 2026 hearing is Plaintiff's Motion for Leave to File a Second Amended Complaint (SAC). The SAC (tendered as SAC-06) is a complete, cognizable pleading that addresses the deficiencies alleged in Defendants' Demurrer and Special Motion to Strike. If the Court grants leave to amend, the FAC is superseded. If the Court evaluates the Demurrer against the FAC, the SAC operates as the specific, tendered cure demonstrating that

amendment would not be futile.

## 2. THE PROPOSED SAC CURES EACH DEFICIENCY DEFENDANTS ALLEGE

The matrix below maps each category of defect Defendants allege to the specific SAC paragraph(s) that cure it.

| Demurrer Theme                    | Alleged Defect in         |                                                                                                  |                          |
|-----------------------------------|---------------------------|--------------------------------------------------------------------------------------------------|--------------------------|
|                                   | FAC                       | SAC Cure (¶)                                                                                     | Authority                |
| Jurisdictional (§ 904.1 / Rochin) | “Masqueraded appeal”      | SAC ¶¶ 1–5, 114–120 (independent equitable action framing)                                       | Kougasian; Olivera       |
| Res judicata / collateral attack  | Same primary right        | SAC ¶ 24 (primary-rights allegation)                                                             | Mycogen; Boeken          |
| Intrinsic/extrinsic line          | “No extrinsic fraud pled” | SAC ¶¶ 29–39, 40–63, 108–109 (two-phase pattern + officer-of-court reliance + Apr. 16 admission) | Kulchar; Westphal        |
| § 47(b) privilege                 | “All conduct privileged”  | SAC ¶¶ 34–39 (noncommunicative file-transfer); 108, 137 (Action Apartment exception)             | Kimmel; Action Apartment |

| Demurrer Theme                              | Alleged Defect in<br>FAC        | SAC Cure (§)                                                      | Authority                         |
|---------------------------------------------|---------------------------------|-------------------------------------------------------------------|-----------------------------------|
| Uncertainty                                 | “Incomprehensible”              | SAC §§ 29–63,<br>86–113<br>(date-and-actor<br>particularity)      | A.J. Fistes                       |
| Serrano sufficiency                         | “Conclusory”                    | SAC §§ 29–63 (facts);<br>114–165 (element<br>mapping)             | Serrano                           |
| § 473 / limitations                         | “Six-month bar”                 | SAC §§ 95, 115<br>(equitable accrual)                             | Kougasian                         |
| Standing / misjoinder<br>(CSAA)             | “Third-party insurer”           | SAC §§ 48–57<br>(agency acts by<br>CSAA as principal)             | Civ. Code § 2338;<br>Doctors’ Co. |
| Scienter on fraud<br>counts                 | “No specific intent<br>pled”    | SAC §§ 157–165<br>(Count 7 constructive<br>fraud; scienter-light) | Civ. Code § 1573;<br>Assilzadeh   |
| “Conspiracy is not a<br>tort” (anticipated) | Independent<br>conspiracy count | SAC § 141A<br>(joint-liability theory<br>under Count 4)           | Applied Equipment                 |